

NEW YORK ROOMMATE (ROOM RENTAL) AGREEMENT

All leases or rental agreements are construed under N.Y. Real Prop. Law § 235-f to permit occupancy by the tenant, the immediate family of the tenant, one additional occupant, and the dependent children of the occupant. In addition:

- A roommate who pays rent to the tenant of record is an occupant permitted under N.Y. Real Prop. Law § 235-f, and not an illegal sublessee, as long as the tenant retains residence in the unit.
- The Roommate Law applies to housing that is subsidized under the federal Section 8 program.
- It also applies to lessees of cooperative apartments.

This roommate contract is provided for the mutual benefit of roommates and does not constitute legal advice. If you need legal advice, you must contact an attorney.

PARAGRAPH I. THE LANDLORD, ROOMMATES, & PREMISES:

Date: _____

New Tenant: _____ hereinafter referred to as the "New Tenant"

Landlord/Principal: _____ hereinafter referred to as "Landlord/Principal".

Current Co-Tenant(s): _____, _____,
_____, _____, _____.

Premises: _____ (address).

This agreement is to last for the same term as our lease agreement, which runs from _____ [start date] to _____ [end date].

- New Tenant understands that they are entering into a legally binding agreement that is enforceable by and between the other roommates and the Landlord/Principal Tenant.
- If the owner of the premises is not living in the shared residence, I understand that this agreement is not enforceable with regard to its owner and will not protect me against any claims that the owner may have against myself or my roommates under our roommate contract.

PARAGRAPH II. SECURITY DEPOSIT:

- The security deposit for the rental premises is _____ Dollars (\$_____) totaling _____ Dollars (\$_____) including all the roommates combined deposits.
- The New Tenant agrees to accept responsibility for damages, which my pet(s), my guests, or that are cause and will reimburse the other roommate(s) for the part of their security deposit withheld for these damages.

PARAGRAPH III. RENT:

- The total rent according to the lease agreement is _____ Dollars (\$_____) per month. The New Tenant agrees to pay _____ Dollars (\$_____) per month on or before the due date set forth in the lease agreement.
- All payments will be made to _____.
- The New Tenant understands that the owner of the premises can evict all of the tenants if the landlord does not receive the rental payments in full and on time each month.

PARAGRAPH IV. UTILITIES:

- The New Tenant agrees to pay 1/____ for the following utilities:
_____.
- The New Tenant agrees to pay 1/____ of the following services:
_____.
- The New Tenant agrees to place the following utilities in their name
_____, and to ensure that monthly payments are collected and made by all co-tenants in full and on time.
- The New Tenant agrees to pay as follows for any additional utilities or services:
_____.

PARAGRAPH V. MOVE-OUT:

If, for any reason, the New Tenant moves out of the rental premises before the lease has concluded they realize that it is their responsibility to find a replacement tenant. The New Tenant is to take reasonable steps to find a replacement roommate who is acceptable to the present roommates. If one of the roommates moves out, the New Tenant understands that it the Landlord/Principal Tenant's responsibility to take reasonable steps to find a replacement tenant. The New Tenant understands that it is in the best interests of all roommates to replace any departing tenants.

PARAGRAPH VI. ADDITIONAL AGREEMENTS:

Attached is a description of additional agreements that are incorporated into this contract, including: food/shopping arrangements; cleaning responsibilities; privacy; parking; sharing of personal items; noise/study times; smoking/drinking; parties and entertaining; overnight guests; pets, etc.

PARAGRAPH VII. GOVERNING LAW:

This Lease shall be governed by and construed in accordance with the laws of the State of New York.

PARAGRAPH VIII. AUTHORIZATION:

The roommates have executed this agreement on this ____ day of _____,
20____.

Principal Roommate/Landlord:

Signature _____ Printed Name _____

New Roommate:

Signature _____ Printed Name _____

Co-Roommate:

Signature _____ Printed Name _____

Co-Roommate:

Signature _____ Printed Name _____

Co-Roommate:

Signature _____ Printed Name _____

Co-Roommate:

Signature _____ Printed Name _____

Co-Roommate:

Signature _____ Printed Name _____